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Of Counsel

April 15, 2019

Hon. Arlene Gordon-Oliver
Family Court, Westchester County
111 Dr. Martin Luther King Blvd.
White Plains, NY 10601

Attn: Monique Hardy, Esq.
Senior Court Attorney
Mhardy@nycourts.gov

Re: Walsh v. Russell
File No: 154703
Docket No: O-12635-19

Dear Judge Oliver:

Please be advised that I am assigned counsel for Tara Walsh.

Since the time I was assigned, there has been no visitation as I have not been able to properly "vet" the supervising agency. Most disturbing, is that almost immediately after my assignment I learned that prior to the selection of the agency, there were communications between Mr. Russell's girlfriend and his financial advisor with the supervising agency. After my assignment, I am aware of at least one communication between Mr. Russell and the agency in which he advised the agency of the history of my client's diet, her allegedly being anorexic, her mother being anorexic, and so forth.

I have asked on countless occasions for copies of the communications between Mr. Russell's girlfriend, and his financial advisor prior to the agency's retention, and any other communications, and now I have great concerns because despite my repeated requests and those of Ms. Jackman, the Attorney for the Child, none have been received.

Further, and equally as frustrating, it is unclear is whether or not all the documents provided to the forensic expert by both parties have been provided to the other party. The file I received has obviously now been bounced between two lawyers prior to my assignment, and these several issues are now unclear.

In addition, the Order related to supervised visitation is absolutely unworkable as it provides that my client is not entitled to convey any information to the supervising agency. There was no intake, which is not, as I understand it, this agency's normal course of conduct, yet the father spends quite a bit of time traveling to and from the visitation and no one can monitor what is said during those periods of time.

Lastly, Mr. Russell cannot seem to help himself as he now has had his girlfriend, his financial advisor, himself, his lawyers (three before and possibly two new attorneys now) communicating with counsel, the supervisors, which has created an unmanageable and quite frankly unintelligible manner to keep track of what is provided to the forensic expert and how visitation will ensue. Despite my repeated requests, Mr. Russell continues to communicate with me directly, copying whoever he deems appropriate. (I did respond on one occasion, as a "reply all"). However, at this point, these matters need to be addressed, either by motion or immediate court conference.

With regard to the foregoing, I await the Court's advice.

Respectfully yours,

GUTTRIDGE & CAMBARERI

A handwritten signature in black ink, appearing to read 'John C. Guttridge', with a stylized flourish at the end.

JOHN C. GUTTRIDGE

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